

THE GAZETTE OF INDIA
EXTRAORDINARY
PART –III –SECTION 4
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SECURITIES AND EXCHANGE BOARD OF INDIA
NOTIFICATION
Mumbai, the 21st November, 2017
SECURITIES AND EXCHANGE BOARD OF INDIA (INTERMEDIARIES)
(AMENDMENT) REGULATIONS, 2017

No. SEBI/LAD-NRO/GN/2017-18/021. - In exercise of the powers conferred under section 30 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following Regulations to further amend the Securities and Exchange Board of India (Intermediaries) Regulations, 2008, namely:-

1. These regulations may be called the Securities and Exchange Board of India (Intermediaries) (Amendment) Regulations, 2017.
2. They shall come into force on the date of their publication in the Official Gazette.
3. In the Securities and Exchange Board of India (Intermediaries) Regulations, 2008, -
 - a. in regulation 22, a new clause shall be inserted after clause (c), namely –

“(ca) “Executive Director” means an officer of the Board who is appointed as such by the Board”.

- b. in regulation 24, -

- i. the existing sub-regulation (1) shall be substituted by the following sub-regulations, namely –

“(1) Where it appears to the designated member, that any person who has been granted a certificate of registration under the Act and regulations made thereunder has committed any default of the nature specified in regulation 23, the designated member may approve the initiation of proceedings under this Chapter against such person.

(2) The Executive Director shall thereafter appoint an officer not below the rank of a Division Chief, as a designated authority:

Provided that the executive director may, at his discretion, appoint a bench of three officers, each of whom shall not be below the rank of a Division Chief:

Provided further that such bench shall be presided by the senior most amongst them and all the decisions or recommendations of such bench shall be by way of majority.

- ii. the existing sub-regulation (2) shall be re-numbered as sub-regulation (3).

Sd/-

AJAY TYAGI

CHAIRMAN

SECURITIES AND EXCHANGE BOARD OF INDIA

Footnote:

1. The Securities and Exchange Board of India (Intermediaries) Regulations, 2008 was published in the Gazette of India, Part III Section 4 on May 26, 2008 vide notification No.LAD-NRO/GN/2008/11/126538.

2. The Securities and Exchange Board of India (Intermediaries) Regulations, 2008 was subsequently amended on:-

- a. August 11, 2008 by the Securities and Exchange Board of India (Stock Brokers and Sub-Brokers) (Amendment) Regulations, 2008, vide notification No.LAD-NRO/GN/2008/20/134766.
- b. July 14, 2009 by the Securities and Exchange Board of India (Intermediaries) (Amendment) Regulations, 2009, vide notification No.LAD-NRO/GN/2009-10/12/169546.
- c. January 7, 2014 by the Securities and Exchange Board of India (Foreign Portfolio Investors) Regulations, 2014, vide notification No.LAD-NRO/GN/2013-14/36/12.
- d. May 25, 2016 by the Securities and Exchange Board of India (Intermediaries) (Amendment) Regulations, 2016, vide notification No.SEBI/LAD-NRO/GN/2016-17/006.
